

How to Make an Interim Application

Instructions

You can make an **Interim Application (Form F18.03A)** if your family law issue needs a temporary order in place until your issue gets a final resolution.

When You Can Make an Interim Application

You can **ONLY** make an interim application if either of the following applies to you:

- 1) There has been a case management hearing about the same issue(s) that your interim application is about (For example, you can only apply for interim child support if a case management hearing for child support has already taken place) **AND** your matter is urgent; or
- 2) You have permission from a judge to apply for an interim application. You can use this form to request permission.

Completing Your Application

You can fill out this form by hand or you can download and fill out this form electronically at www.court.nl.ca/supreme/family/forms.html (If you fill out the form electronically, you must still print the form and file it with the Court). You must fill out the entire form.

Filing Your Interim Application

You must make **2 extra copies** of your completed and signed Interim Application (including any additional documents). To file the Interim Application, you must bring the Application to the Supreme Court location where your family law file is or you can mail it to that location (with the filing fee attached). You can look up the fees online: <https://www.court.nl.ca/supreme/schedule-of-fees/>

If you have had a case management meeting already, the Court will schedule a date for an Interim Application hearing on the front page of this form.

If your Interim Application requires permission from a judge, the Court will contact you to let you know if permission is granted or not. If permission is granted, the Court will schedule a date for an Interim Application hearing (and write that date on the front page of this form).

Serving Your Application

You must give a copy of your Interim Application and the hearing date to the other person **at least 10 days** before the hearing date that the Court provides to you. This is called *service*. You can serve the other person by: personal service (an adult, who is not you, can hand-deliver the document), leaving a copy with the other person's lawyer, leaving a copy at the other person's address, registered mail/courier, or regular mail. You can also serve the other person using fax, email, or electronic document exchange, if the other person has provided that information.

More Information

Questions? Go to <https://www.court.nl.ca/supreme/family-division/> or contact a Court near you:

Corner Brook: (709) 637-2227

Grand Falls-Windsor: (709) 292-4260

Gander: (709) 256-1115

Happy Valley-Goose Bay: (709) 896-7892

Grand Bank: (709) 832-1720

St. John's: (709) 729-2258

--- It is highly recommended that you get advice from a lawyer ---

If you need help finding or getting a lawyer, you can contact:

Public Legal Information Association of NL (PLIAN): www.publiclegalinfo.com or 1 (888) 660-7788

Legal Aid: www.legalaid.nl.ca or 1(800) 563-9911

--- REMOVE THIS PAGE BEFORE SERVING THE APPLICATION ---

How to Respond to an Interim Application

Instructions

You have been served with an Interim Application.

This means that the other person in your family law proceeding is asking the Court to grant a temporary order until final resolution of your family law issue.

Read the attached Interim Application carefully.

If you want to oppose any claim(s) made in the interim application, you must file ONE affidavit in response. You can find an Affidavit template form at any Supreme Court location or online: www.court.nl.ca/supreme/family/forms.html

Your affidavit should set out your position on the issues in the Interim Application and any important details or information.

You must give a copy of your Affidavit to the other person **at least 4 days before** the hearing date indicated on the front page of the Interim Application.

If you do not respond or do not appear at the scheduled court hearing, the Court may proceed and make an order without hearing from you.

More Information

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Form F18.03A: Interim Application (Family Law)



**In the Supreme Court of
Newfoundland and Labrador
(General/Family)**

FOR COURT USE ONLY

COURT FILE NO: _____

CENTRAL DIVORCE REGISTRY NO: _____

Filed at _____, Newfoundland and
Labrador, this _____ day of _____, 20_____.

Registry Clerk of the Supreme Court of Newfoundland and Labrador

BETWEEN: _____ APPLICANT
(Print full name)

AND: _____ RESPONDENT
(Print full name)

AND: _____
(Print full name)

☐ NOT APPLICABLE
☐ SECOND APPLICANT
☐ SECOND RESPONDENT

FOR COURT USE ONLY
☐ **PERMISSION REQUIRED**

(for an interim application made before case
management)

☐ **PERMISSION NOT REQUIRED**

(for an interim application made after case management,
application to be removed as lawyer of record, or
application to access a court record)

☐ **PERMISSION GRANTED** ☐ **PERMISSION GRANTED IN PART** ☐ **PERMISSION DENIED**

FOR COURT USE ONLY

HEARING DATE

A hearing for this application is scheduled to be heard in the Supreme Court of Newfoundland and Labrador:

Location: Supreme Court in _____, Newfoundland and
Labrador

Address:

Date: _____ **Time:** _____ am /

pm

I, _____, the ☐ Applicant ☐ Respondent ☐ Other:
(Print your name)

am seeking an interim order.

Part A Interim order(s) sought

Fill in what you are seeking:

Part B Reasons for seeking interim relief (Affidavit)

Fill in the reasons why you are seeking the Interim Order(s):

Statement of Truth

You must swear or affirm that the facts and information that you have written in this Interim Application any attachments is the truth. You must swear or affirm and sign this Statement of Truth in front of a commissioner of oaths, notary public, justice of the peace, or lawyer. Court Registry staff are commissioners of oaths and you may sign this application at the Court when you file it.

I declare the facts and information in this Interim Application are true to the best of my knowledge and belief.

SWORN TO or AFFIRMED at _____, this _____ day of _____, 20____.

Signature

Signature of Person Authorized to Administer Oaths

Lawyer's Signature for Fee Waiver

I am employed by the Newfoundland and Labrador Legal Aid Commission or a Newfoundland and Labrador government department under the *Executive Council Act* and I am the lawyer of record in this matter.

Signature of Lawyer (if any)

Print Name of Lawyer (if any)